

Multiple Choice (20 marks)

1. In which of the following the idea of 'natural law' first appeared
 - (a) French Revolution
 - (b) American War of Independence
 - (c) Roman Law
 - (d) Greek Thinking
2. The role of gathering and interpreting intelligence about foreign countries in order to allow policymakers to make good foreign policy decisions was given to
 - (a) the Central Intelligence Agency (CIA).
 - (b) the Federal Bureau of Investigation (FBI).
 - (c) the National Security Council.
 - (d) Both A and B are correct.
3. Under common law principles, which of the following is not correct regarding the duty owed by a possessor of land towards an undiscovered trespasser?
 - (a) No duty for artificial conditions.
 - (b) A duty for natural conditions.
 - (c) No duty for natural conditions.
 - (d) No duty for active operations.
4. Client thinks she has been slandered. What of the following is not true about slander?
 - (a) It is spoken defamation.
 - (b) Plaintiff has to prove special damages, unless it falls into slander per se.
 - (c) The statement does not have to be published if it constitutes slander per se.
 - (d) There are four slander per se categories.
5. "Natural law is based on the nature of man and on his inward need of living in society." Who said it?
 - (a) Hugo Grotius
 - (b) Hobbes
 - (c) Locke
 - (d) Rousseau

6. Bureaucratic politics suggests we should be worried about which of the following with regard to nuclear weapons?
 - (a) Having the capability to deter the most powerful rival
 - (b) Having the capability to deter smaller states
 - (c) How nuclear attacks are identified and responded to; who controls the weapons
 - (d) Bureaucratic politics provides no information about nuclear proliferation and use
7. Who was the first jurist to study comparative aspect of law?
 - (a) Savigny
 - (b) Austin
 - (c) Kelsen
 - (d) Maine
8. The foreign policy doctrine that European nations should stay out of Latin America is known as
 - (a) the Powell Doctrine.
 - (b) the Roosevelt Doctrine.
 - (c) the Bush Doctrine.
 - (d) the Monroe Doctrine.
9. Which of the following is a legitimate threat to societal security?
 - (a) Political policies designed to alter demographic characteristics of a state.
 - (b) All of these options.
 - (c) Legislation that criminalises certain cultural behaviours or practice.
 - (d) The use of military force to conduct ethnic-cleansing through displacement and killing.
10. In which situation would a Defendant not be held to the standard of care of a reasonable person?
 - (a) Defendant is deaf, and is accused of being negligent in failing to heed a warning bell.
 - (b) Defendant has poor judgment.
 - (c) Defendant is hot-tempered and damaged property in a tantrum.
 - (d) Defendant has an I.Q. of 85.

True / False (20 marks)

Answer True or False and justify briefly.

1. True or False: The correct answer to 'Which of these statements best describes the UK Constitution?' is 'The UK Constitution is based on a Bill of Rights'.
2. True or False: The correct answer to 'Which of the following constitutional provisions is applicable to corporations?' is 'The equal protection clause of the Fourteenth Amendment.'.
3. True or False: The correct answer to 'The enforcement mechanism of the International Covenant on Civil and Political Rights (and Protocol) consists of' is 'A reporting mechanism only'.
4. True or False: The correct answer to 'Who is considered the "father" of containment?' is 'George Kennan'.
5. True or False: The correct answer to 'Should treaties assume a particular form?' is 'Treaties have to be designated as such, no matter what form they assume'.
6. True or False: The correct answer to 'Which of the examples below has not been developed by the European Court of Human Rights as a situation where the state has a positive...' is 'When the applicant is in the custody of the state'.
7. True or False: The correct answer to 'Which of the following articles are not qualified rights?' is 'Article 9'.
8. True or False: The correct answer to 'Which of the following did not emerge as a trend of the defence trade in the 20th century?' is 'A decrease in the arms trade.'.
9. True or False: The correct answer to 'Is the unlawful homicide committed by Minister of country X abroad an act jure imperii or jure gestionis?' is 'Such conduct is a public act (jure imperii)'.
10. True or False: The correct answer to 'American realists argued that formalism devalued the authority of the judge to make law, because:' is 'The structure of legal reasoning is flawed.'.

End of Paper